

SECOND SCHEDULE.

Section 92.

ENACTMENTS REPEALED.

Session and Chapter.	Title of Short Title.	Extent of Repeal.
9 Geo. 2. c. 37.	An Act to regulate insurance on ships belonging to the subjects of Great Britain, and on merchandizes or effects laden thereon.	The whole Act.
8 Geo. 3. c. 56.	An Act to repeal an Act made in the twenty-fifth year of the reign of his present Majesty, intituled "An Act for regulating Insurances on Ships, and on goods, merchandizes, or effects," and for substituting other provisions for the like purpose in lieu thereof.	The whole Act so far as it relates to marine insurance.
1 & 32 Vict. c. 86.	The Policies of Marine Assurance Act, 1868.	The whole Act.

CHAPTER 42.

An Act to remove doubts as to the manner in which the powers and duties of justices acting in and for a borough may be exercised under the Licensing Acts, 1828, to 1904. [21st December 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) It is hereby declared that where a power may be exercised or a duty is to be performed under the Licensing Acts, 1828 to 1904, or under any rule or regulation made under those Acts or any of them, by justices acting in and for a borough, including a county borough (whether those justices are described as the whole body of justices or otherwise), it is lawful and shall be deemed always to have been lawful for that power to be, and to have been, exercised and for that duty to be, and to have been, performed by a majority of the justices present at a meeting of the justices assembled for the purpose.

Justices acting for a borough under the Licensing Acts may act by a majority.

(2) Nothing in this Act shall prejudice the operation or enforcement of any judgment or order of any court of competent jurisdiction pronounced or made before the first day of December nineteen hundred and six as between the parties to

* the proceedings in which the judgment was pronounced or the order made, and any appeal from any such judgment or order shall be decided as if this Act had not passed.

Port title and
instruction.

2. This Act may be cited as the Licensing Act, 1900, and may be cited and construed as one with the Licensing Acts 1828 to 1904.

CHAPTER 43.

An Act for the Suppression of Betting in Streets and other Public Places. [21st December 1900.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled and by the authority of the same, as follows:

Setting in a
bet, &c

1.—(1) Any person frequenting or loitering in streets or public places, on behalf either of himself or of any other person for the purpose of bookmaking, or betting, or wagering, or agreeing to bet or wager, or paying or receiving or settling bets, shall

- (a) in the case of a first offence be liable, on conviction under the Summary Jurisdiction Acts, to a fine not exceeding ten pounds;
- b) in the case of a second offence be liable, on conviction under the Summary Jurisdiction Acts, to a fine not exceeding twenty pounds; and
- (c) in the case of a third or subsequent offence, or in any case where it is proved that the person whilst committing the offence had any betting transactions with a person under the age of sixteen years, be liable on conviction on indictment to a fine not exceeding fifty pounds or to imprisonment, with or without hard labour, for a term not exceeding six months without the option of a fine, or on conviction under the Summary Jurisdiction Acts to a fine not exceeding thirty pounds or to imprisonment, with or without hard labour, for a term not exceeding three months without the option of a fine;

and shall in any case be liable to forfeit all books, cards, papers and other articles relating to betting which may be found in his possession.

(2) Any constable may take into custody without warrant any person found committing an offence under this Act, and may seize and detain any article liable to be forfeited under this Act.

(3) Any person who appears to the court to be under the age of sixteen years shall for the purpose of this section be deemed